



Introduction to the Legal System II

Forms of State –
Territorial Organization

Comparative Method

Diachronic Method

- We use it to Classify Forms of State.
- A historical look.

Synchronic Method

- We can classify Forms of State also on the basis of their territorial organization
 - The allocation of power (mostly legislative) between the Central Government and sub- state entities.
- A contemporary look.

Comparative Method

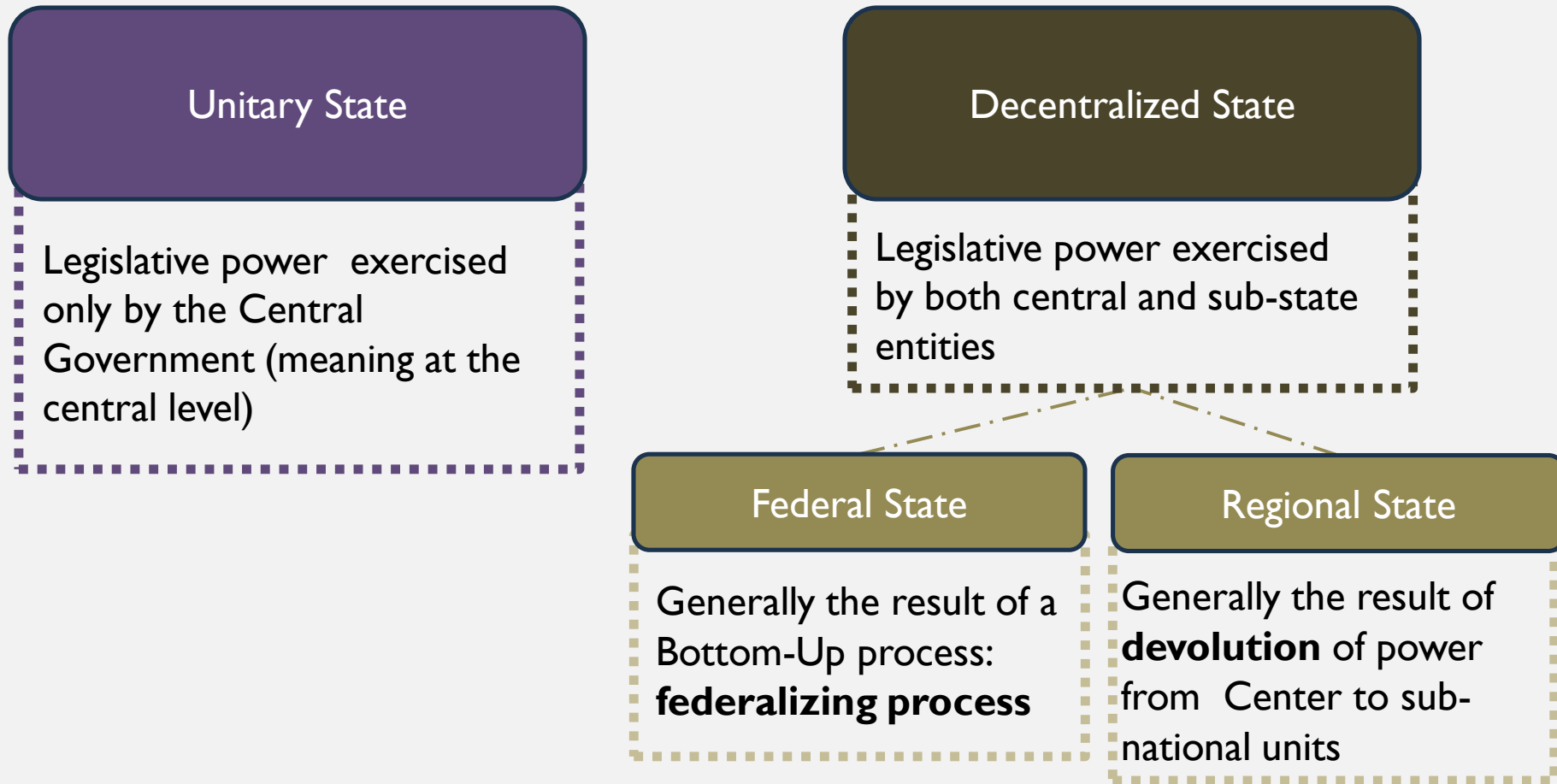
Synchronic Method

- We can classify Forms of State also on the basis of their territorial organization.



The allocation of power (mostly legislative) between the Central Government and sub- state entities.

- A contemporary look.



The level of decentralization (how much power is decentralized) is not enough to distinguish Federal and Regional States

We can point at **4 distinguishing features**

I. Allocation of Legislative Power

How is legislative power allocated between the Centre and Sub-national entities?

Federal State

Constitution lists what central government does
All other subject matters left to sub-national entities

Regional State

Constitution lists what the sub-national entities do
Central government has competence over everything else

Unitary and decentralized systems



Unitary
systems



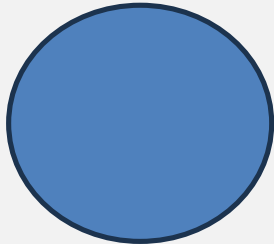
Decentralized
systems

Only central
government has
legislative power

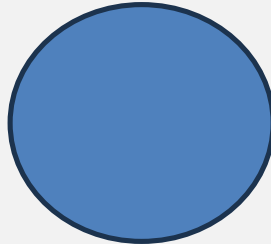
Sub-national
entities also have
legislative power

Unitary and decentralized systems

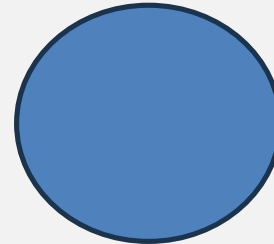
In decentralized systems we distinguish 3 forms of territorial organization:



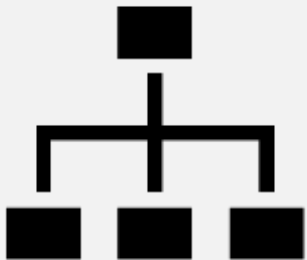
Federalism



Regionalism



Devolution



Vertical separation of powers between central government and sub-national entities.

I. Allocation of Legislative Power

How is legislative power allocated between the Centre and Sub-national entities?



- E.g. Section 8 of US Constitution: “The Congress shall have power to: *lay and collect Taxes, Duties, Imposts and Excises.....*”

- [US Consitution](#)



- German Basic Law, Art. 70: “*The Länder shall have the right to legislate insofar as this Basic Law does not confer legislative power on the Federation.*”



- E.G. Section 148 Spanish Constitution: “*The Self- Governing Communities may assume competences over the following matters...*”

I. Allocation of Legislative Power

How is legislative power allocated between the Centre and Sub-national entities?



- **Exceptions:**
- **Canada:** Art 91, Constitution Act 1867: *“it shall be lawful for the Queen, by and with the Advice and Consent of the Senate and House of Commons, to make Laws ..., in relation to all Matters not coming within the Classes of Subjects by this Act assigned exclusively to the Legislatures of the Provinces”*



- **Italy:** Art. 117 Italian Constitution: *“The State has **exclusive legislative powers** in the following matters: a) foreign policy; b) immigration... etc.....**The Regions have legislative powers in all subject matters that are not expressly reserved to State law.**”*
- https://www.senato.it/documenti/repository/istituzione/costituzione_inglese.pdf

I. Allocation of legislative power

	List of Subject Matters of Exclusive Competence	Residual Clause
Federal	Central Government	Regions
Regional	Regions	Central Government

	Federal Systems	Regional Systems
Constitution	Constitution contains a list of subject matters which are of exclusive competence of the central government.	Constitution contains a list of subject matters which are of exclusive competence of Regions.
Judiciary System	The member States have their own judiciary system.	Regions do not have their own judiciary system.
Parliamentary Representation	The second Chamber of Parliament is a Chamber of sub-national entities Equal vs weighted representation.	The second Chamber of Parliament does not represent sub-national entities.

	Federal Systems	Regional Systems
Amendment Procedure	Member States take part in the constitutional amendment procedure.	Regions do not take part in the constitutional amendment procedure.
Constitution	Member States have their own Constitutions? Only for systems whose federalizing process is a bottom-up process.	

2. Allocation of Judicial Power

Do sub-national entities have their own Court systems?

Decentralized State

Federal State

Regional State

Sub-national Entities **often** have their own court Systems:

Integrated Model: Subnational courts apply uniform national laws.

– E.G. Canada

Separated Model: Subnational entities also have their own civil and criminal procedures and substantive law.

– E.G. United States

Sub-national Entities **never** have their own Court System.

National Civil and Criminal Law are uniform.

3. Representation in the Upper House

How are sub-national entities represented in Parliament, and specifically in the Upper House/Second Chamber?

Decentralized State

Federal State

The Second Chamber represents the sub-state entities

E.G. US Senate



E.G. German Bundesrat



E.G. Austrian Senate



Regional State

The Second Chamber does not represent the sub-state entities

E.G. Italian Senate



4. Constitutional Amendment Powers

Do sub-national entities participate in Constitutional Amendment?

Decentralized State

Federal State

Constitutional amendment requires direct consent of the sub-national entities

E.G. US:

- Const. amendments have to be ratified by 3/4 of the State Legislatures

Regional State

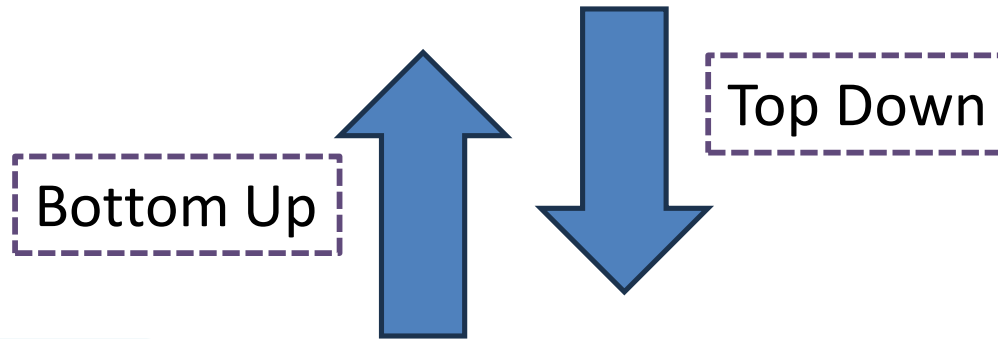
Sub-State entities do not take place in constitutional amendment procedures:

E.G. Italy:

- Partial involvement: possibility for a number of regions to ask for a referendum

Federal and Regional Systems

Two federalizing processes:



More conventional
(USA)

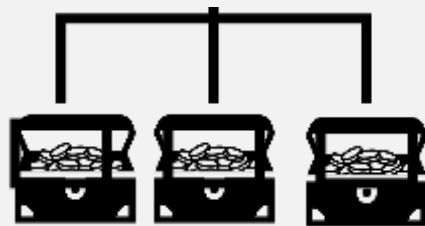


More recent
(Belgium)



Further elements that can be considered

- Presence of Statutes of Autonomy or Sub-national Constitutions
- Financial Arrangements
 - Transfers from Central Government
 - Fiscal Federalism



Devolution in the UK



Devolution in the UK - Characteristics

UK can be seen as a multi-national state

4 nations, culturally different, with strong demands for autonomy

Process of Devolution

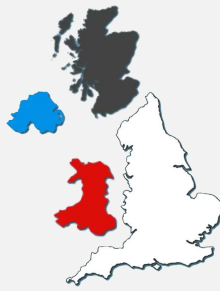
Transfer of legislative power from Westminster to the devolved parliaments.

Started by the Labour Government in 1997

An ongoing process



Devolution in the UK – Characteristics



- **Asymmetry**
 - No Standardized constitutional method for devolving power
 - ***Ad Hoc*** Pieces of Legislation
 - Scotland Act 1998 & 2012
 - Government of Wales Acts 1998, 2006, 2017
 - Northern Ireland Act 1998
 - **Structural Asymmetry** and **Competence Asymmetry**
 - **No Devolution for England**

Devolution in the UK - Characteristics



Northern
Ireland
Assembly



Scottish
Parliament



Welsh
Assembly



UK Parliament
(Westminster)

Scottish referendum on Independence

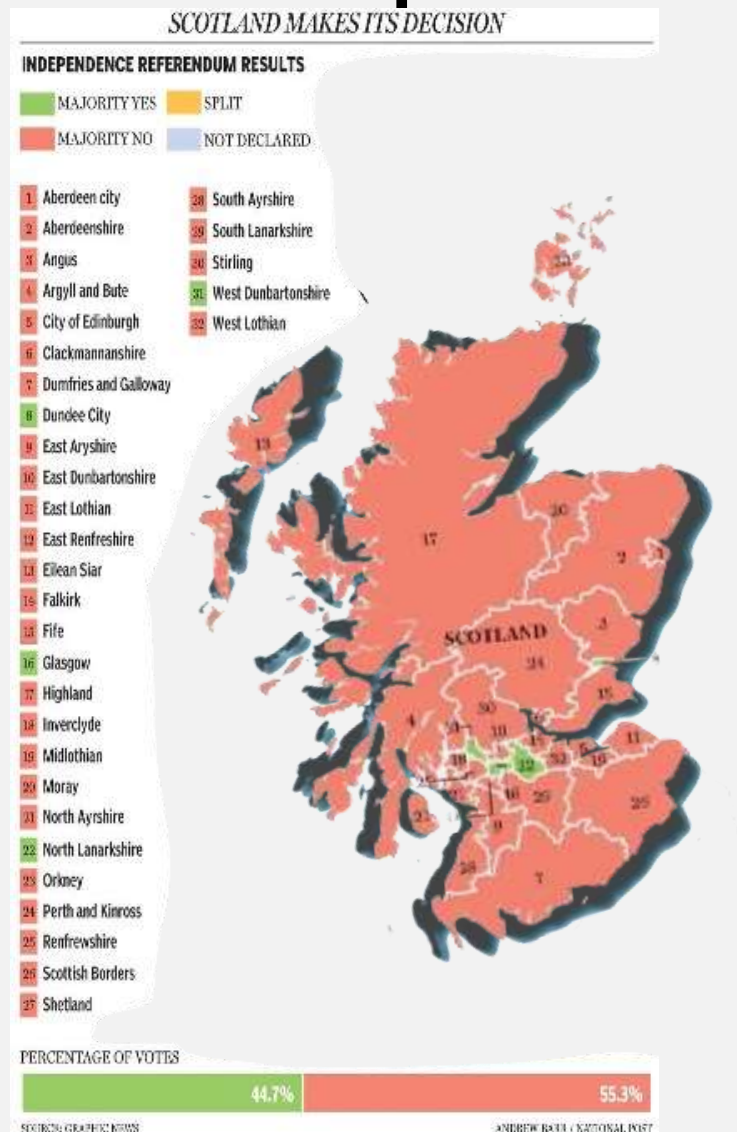


Edinburgh Agreement:
15 October 2012

(government of the UK and government of Scotland) –
temporary transfer of power to legislate on referendum

- Scottish Independence Referendum Act 2013
- YES Scotland, Better Together
- «Should Scotland be an Independent Country?»

Scottish referendum on Independence



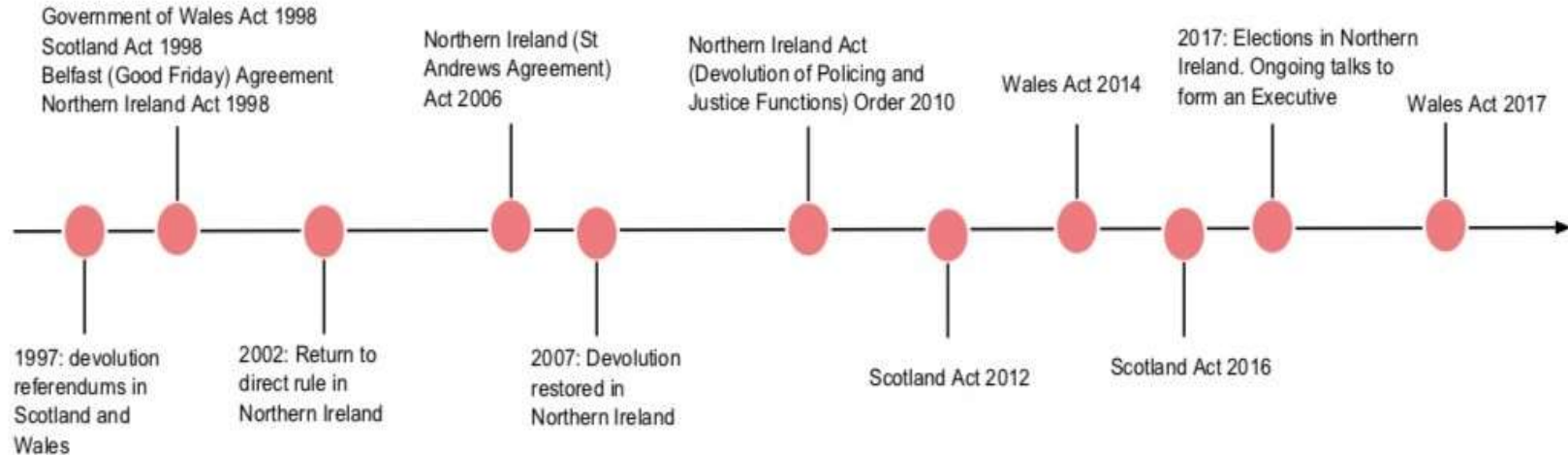
Scottish Referendum, 18
Sep 2014

Results

YES - 44,7%

NO - 55,3%

Timeline



How does it work?

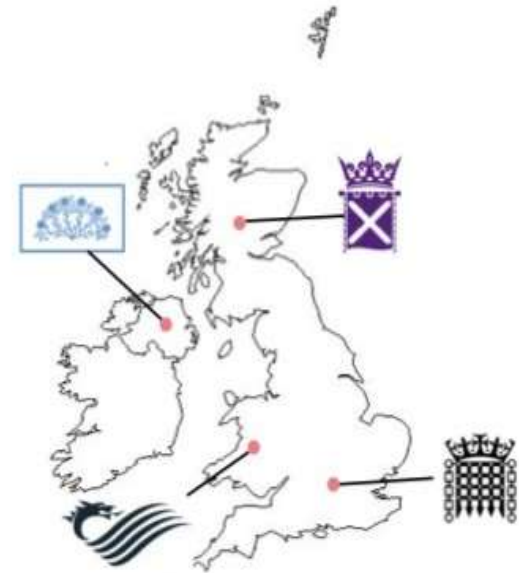
Across the UK there are four different legislatures and executives, each with a different range of powers. The four administrations speak to each other to make sure devolution is successful. This happens in lots of different ways. Ministers have formal discussions in meetings such as the Joint Ministerial Committee.

Joint Ministerial Committee

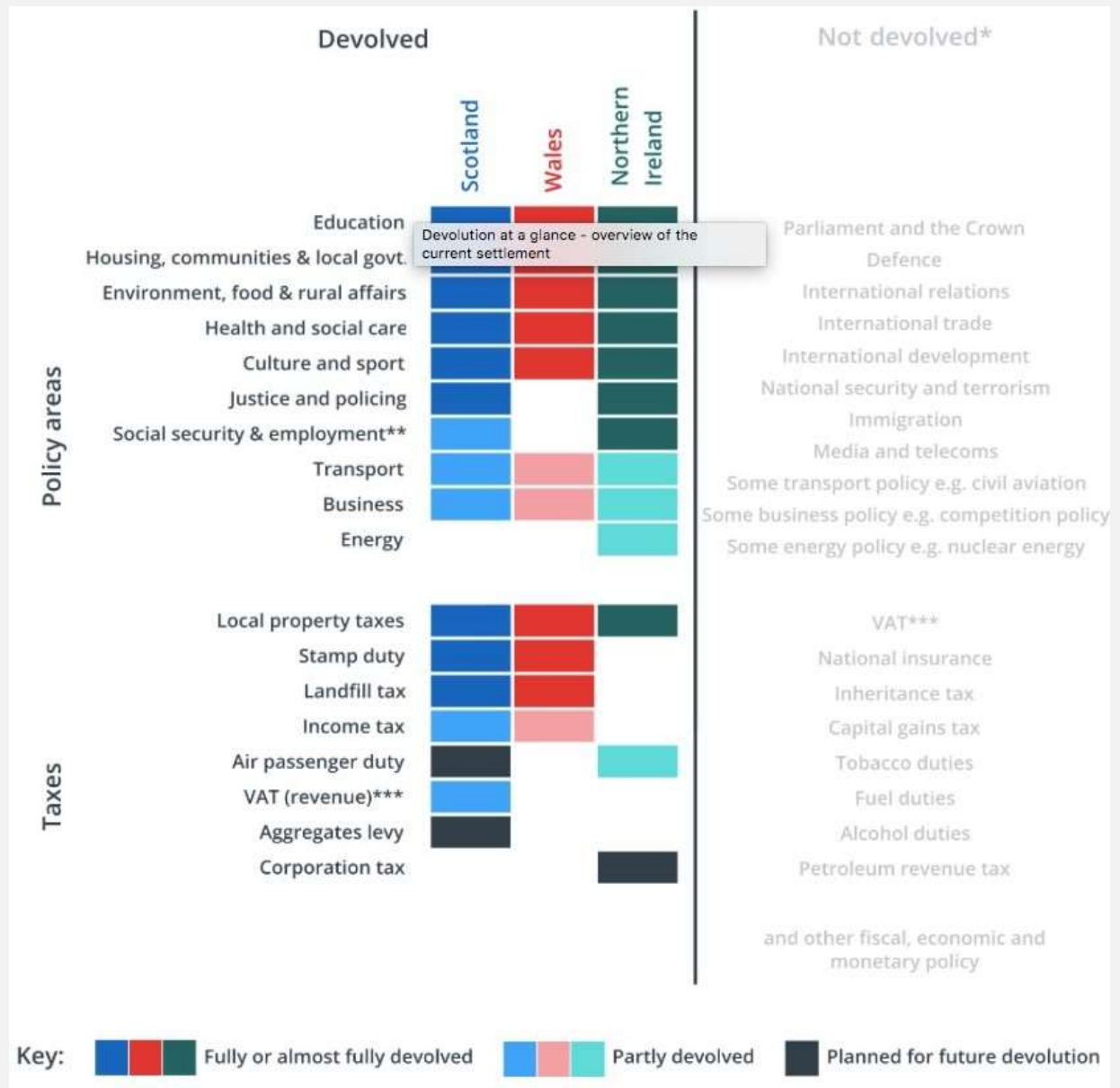
JMC (Plenary)

JMC (EU Negotiations)

JMC (Europe)



Key areas of devolved matters, 2019



Devolution

Advantages

- Accommodate Diversity
- Improve democracy and representation
- Effectiveness and quality of decision-making
- Economic Dividend

Disadvantages

- Encourage nationalism and secessionist claims
- Risk of capture
- Inefficiencies and regulatory competition
- Socio-Economic Inequalities